

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-28

WAY INTERGLOBAL NETWORK LLC.
COMPLAINANT,

V.
SHENZHEN UNIFELIX SCM LIMITED
RESPONDENT.

DECLARATION OF RENA HUANG

I, Rena Huang, declare as follows:

I am the Operations Manager of Respondent Shenzhen Unifelix SCM Limited ("Unifelix"). I have personal knowledge of the facts set forth in this declaration and, if called as a witness, could and would testify competently to such facts under oath. My personal knowledge is derived from my role at Unifelix, including direct involvement in these shipments, including communications with the various parties in this matter.

1. I was personally involved in working with Complainant Way Interglobal Network LLC ("Way") in handling the shipment of containers that Unifelix transported on behalf of Way, including the 20 containers at issue in these proceedings, ("20 Containers").
2. On March 22, 2022, Unifelix entered into a memorandum of understanding entitled "Transport Contract" with Way regarding future shipments of cargo from China to Illinois ("TC"). (Complainant's Appendix CX 1-2.)
3. The TC was a proposed general outline for how business would be done between the parties, but it required additional agreements as to key terms in order for the parties to actually ship cargo.
4. Unifelix did issue house bills of lading ("HBL") for the shipment of cargo for Way, including the 20 Containers. True and correct copies of those HBLs are found in Complainant's Appendix CX 135, 270, 340, 402, 670, 513, 553, 778, 898, 978, 1390. The reverse terms of the HBL are attached to the declaration of Gary Kardian as Exhibit A.
5. At the time of the shipments with Way, there was a large backlog of containers at the California ports, which delayed the shipments. These delays strained Unifelix's finances as it delayed payment on undelivered shipments.
6. On the first 46 containers shipped for Way, they were delivered to Way's warehouse.

7. Unifelix arranged and paid for the truck shipments from the railyards in Illinois to Way's warehouse,
8. However, after delivering the first 46 containers to Way's warehouse between May 26 and July 11, 2022, Way did not pay for the invoices for ocean or truck transport. Some shipments were over 50 days overdue when they were finally paid.
9. The total amount of ocean freight for those 46 containers totaled \$702,560, plus truck delivery charges of \$118,407, less a payment of \$74,350 by Way, resulted in a total outstanding balance of \$746,617.
10. These late payments put extreme financial pressure on Unifelix, making continuing on the prior arrangement infeasible.
11. Way also was non-responsive and stalling when we pressed for payment on the overdue invoices. (See Complainant's Appendix CX 5-11, 30)
12. As it appeared that they were not going to make arrangements to pay the overdue amounts, we contacted its suppliers to put them on notice that they may have to pay the ocean freight if Way continued to not pay. No defamatory or untrue statements were made during those communications.
13. After the financial strain caused by Way's failure to promptly pay, Unifelix therefore decided to insist upon proceeding under our standard procedure of not arranging or paying for the truck transport at desitination, and receiving payment for ocean freight prior to release of

- the cargo. This arrangement would be consistent with the terms of the HBL for these shipments. (Complainant's Appendix CX 135, 270, 340, 402, 670, 513, 553, 778, 898, 978, 1390; Exhibit A to Decl. of G Kardian.)
14. We raised these points with Way by discussions over the telephone, Zoom calls and emails.
 15. Copies of the email conversations are located at SHENZHEN – 435 – 445.
 16. The conclusion of those discussions resulted in Way agreeing to arrange picking up the containers from the rail yards and paying ocean freight prior to the release.
 17. We constantly reminded them that there were multiple containers already at the railyard in Illinois, and that they needed to pay the ocean freight and have the containers picked-up immediately to avoid further demurrage. (See Complainant's Appendix CX 36-38)
 18. Although Way sometimes claimed to audit Unifelix's invoices and documentations, Way never provided documentation of errors in Unifelix's invoices, documentation or notices.
 19. Way ultimately arranged for the truck transport of the 20 Containers of cargo to its warehouse.
 20. Any demurrage incurred was due to Way's failure to promptly pay its freight charges to enable release of the cargo, and/or to promptly arrange truck transport to pick up its cargo on time.

21. Unifelix was also regularly and often supplying updates as to status of as to all of the 20 containers, including the two containers that Way claims it did not receive arrival notice on: FANU1742269 (Complainant's Appendix CX 166, 311, 356) and TXGU7118415 (CX 407, 412, 422, 423, 439, 471, 474, 520, 528, 531, 576, 577, 583, 607, 619, 934, 938, 947, 950, 952)

I declare under penalty of perjury under the laws of the United States that the foregoing is true and correct.

Dated: October 6, 2023



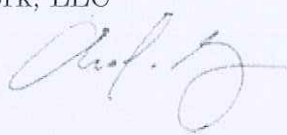
Rena Huang

A handwritten signature in blue ink, appearing to read "Rena Huang", written over a horizontal line.

CERTIFICATE OF SERVICE

I hereby certify that on the 6th day of October 2022, I served the foregoing
DECLARATION OF RENA HUANG on the parties listed below by email.

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By: 

Employee of ROBERTS & KEHAGIARAS
LLP